



2025:AHC-LKO:56132-DB

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 9013 of 2025

Rajesh Kesarwani

.....Petitioner(s)

Versus

The Chairman Energy Deptt. U.P. Power
Corporation Ltd. Lko And 5 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Agendra Sinha, Shailendra Kumar Singh
Counsel for Respondent(s)	: Amit Kumar Dwivedi

Court No. - 2

**HON'BLE MRS. SANGEETA CHANDRA, J.
HON'BLE BRIJ RAJ SINGH, J.**

1. Heard learned Counsel for the petitioner, learned Standing Counsel appearing on behalf of the State Respondents and Sri Amit Kumar Dwivedi, Advocate, who has filed power on behalf of respondent no.5- Lucknow Development Authority.

2. This petition has been filed with the following main prayer:-

"Issue a writ, order or direction in the nature of Mandamus commanding the respondent No.2 to 4 not to grant or process any electric connection in favour of the Respondent No.6 (Sri Aqeel Ahmad) for the premises situated at Plot No.79/3A, Havelock Road, Lucknow, during the pendency of the litigation."

3. It is the case of the petitioner that he had sold certain land to the respondent no.6 through a registered sale deed under the builders agreement. The respondent no.6 has issued two cheque as sale consideration which has been dishonoured by the Bank. The petitioner has moved an application under Section 138 of the Negotiable Instruments Act on 08.07.2022. He has also filed a Regular Civil Suit No.2227 of 2021 renumbered as Civil Suit No.1976 of 2023 praying for permanent injunction against the respondent no.6.

4. The Lucknow Development has also passed a demolition order against the impugned construction. The respondent no.6 has applied for electricity connection and the petitioner is apprehensive that such electricity connection shall be given to the respondent no.6, and therefore, he has filed a complaint on the I.G.R.S. portal where a report has been submitted by the Sub Divisional Officer, LESA (M.V.V.N.L.) Hussainganj, saying that no electricity connection has yet been given to the building, which is still under consideration.

5. Learned counsel for the petitioner says that his limited prayer in the writ petition is only for a direction to the respondents not to give electricity connection to the respondent no.6, without giving an opportunity of hearing to the petitioner.

6. This petition is ***disposed of*** with a direction to the respondents to follow Paragraph-4.4 of the Electricity Supply Code, in its letter and spirit, in processing any application for grant of new electricity connection.

(Brij Raj Singh,J.) (Mrs. Sangeeta Chandra,J.)

September 15, 2025

Rahul